

intentional and willful, and was undertaken with oppression, fraud, and/or malice, entitling Plaintiffs to an award of punitive damages”. (FAC ¶49.)

Defendant argues that the intent necessary to prove a trespass does not always rise to the level necessary for punitive damages and that here the allegations are insufficient. Plaintiffs argue that they have sufficiently alleged facts showing punitive damages.

Punitive damages may be awarded in some trespass claims. (*Haun v. Hyman* (1963) 223 Cal.App.2d 615, 620 (punitive damages allowed when a “trespass is committed from wanton or malicious motives, or a reckless disregard of the rights of others”).) Since 1987, however, a party must not only show “reckless disregard of the rights of others”, but “despicable conduct” in order to show malice. (See, *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [The requirement of showing despicable conduct was added in 1987, and was intended to serve as a substantial, independent limitation on the right to recover punitive damages].)

That being said, not all trespass claims include the intent necessary to award punitive damages. “The only intent required to commit a trespass is an intent to enter the land regardless of motivation; a trespass may be committed by an act that can be intentional, reckless or negligent.” (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 10, fn. 7.)

Thus, the question here is whether the facts alleged show fraud, oppression or malice. (Civil Code section 3294.) There is no showing of fraud. Malice requires “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code section 3294(c)(1).) Oppression requires “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” Despicable conduct has been described as conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. [Internal quotation marks omitted.]” (*Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159.)

Here, it is alleged that Defendant, Plaintiffs’ immediate neighbor, used a portion of Plaintiffs’ property to access her own property. It is also alleged that Defendant continued to use Plaintiffs’ property after Plaintiffs installed a wall to block access to the path. The allegations here are sufficient to state a claim for trespass, but they do not show despicable conduct. Therefore, the motion to strike punitive damages. As this is the first time these issues have been considered by the Court, Plaintiffs are given leave to amend.

11. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF OAKLEY
FILED BY:
TENTATIVE RULING:

The Defendant City of Oakley was dismissed on August 5, 2026. If this motion is withdrawn or moot, counsel shall provide notice to the Court.